ENGLISH

Code of Ethics

Organization : New Brunswick Professional Association of Criminology (NBPAC)
Version : 1.0 **Adopted :** June 2, 2026 **Updated :** October 29, 2026

This code sets out the values, principles and ethical obligations of every member of the New Brunswick Professional Association of Criminology. It is intended to protect the public, preserve trust in the profession, guide the conduct of criminologists and provide a framework for assessing an ethical breach.

Preamble

Criminology studies the phenomenon of crime, victimization and the workings of the justice system, and applies that knowledge to prevention, analysis, risk assessment, intervention and advice. Criminologists often work with vulnerable people and inform decisions with significant consequences; their conduct must therefore be guided by high ethical standards.

This code translates the profession's values into concrete obligations. It does not replace the law or the Association's policies but adds to them; in case of conflict, the law prevails. Where a situation is not expressly addressed, the member acts in accordance with the spirit of the code and the values underlying it.

The code uses "shall" for an obligation and "should" for a strongly recommended practice. It is to be read as a whole: the chapters and articles complement and inform one another.

Purpose and application

The code applies to all members, regardless of category, across all their activities: analysis and research, criminal intelligence, prevention, risk assessment, intervention and support, teaching, consulting, expert opinion and testimony. In this code, the word "person" means any person or group served or affected by the criminologist's practice, including victims, people who have offended, organizations, courts and communities.

A non-clinical practice

The criminologist works in the field of crime and justice. They make no diagnosis, provide no psychotherapy or mental-health treatment, and perform no act reserved to a regulated profession (social work, psychology, counselling therapy, law, medicine) without holding the title. They recognize the limits of their scope and refer the person to the competent profession when needed.

Core values and principles

1. Respect for the dignity and worth of the person. The criminologist recognizes the inherent worth and rights of every person, whatever their acts or circumstances. They act with respect, without gratuitous moral judgment, and support the autonomy and decision-making of persons.

2. Justice and fairness. Criminology serves a fair justice system. The criminologist acts impartially, counters discrimination and contributes to just, evidence-based decisions and policies.

3. Service to the public and society. The criminologist places their skills at the service of community safety, crime prevention and protection of the public, putting the public interest ahead of personal interest.

4. Integrity. The criminologist acts with honesty, probity and transparency. They claim only the titles and competencies they actually hold and avoid any conflict between their interests and their duties.

5. Confidentiality. The criminologist protects information obtained in the course of their duties and uses it only within the limits allowed by consent and by law.

6. Competence and rigour. The criminologist maintains and develops their knowledge, bases their practice on recognized methods and acts only within the limits of their competence.

7. Respect for diversity and cultural safety. The criminologist recognizes and respects cultures, languages and perspectives, including those of Indigenous peoples, in a spirit of truth and reconciliation, and strives to provide a culturally safe environment.

Chapter 1 — Obligations to persons and the public

1.1 Priority of interest and safety. The member places the interest and safety of the person and the public first. They never use their position, authority or the information obtained to cause harm or gain an advantage.

1.2 Non-discrimination. The member treats every person fairly, without discrimination on any ground prohibited by law, and with respect for their dignity and rights.

1.3 Cultural safety and reconciliation. The member accounts for cultural, linguistic and social contexts, recognizes and respects the perspectives and knowledge of Indigenous peoples, and adapts their practice to foster a culturally safe environment.

1.4 Self-determination. The member supports the autonomy and participation of the person in decisions that concern them, to the extent of their capacity and subject to limits set by law or the safety of others.

1.5 Informed consent. The member obtains free and informed consent, explicit or implied as appropriate, after explaining the nature, purposes, limits and risks of their intervention. They account for the capacity of minors or vulnerable persons, and obtain consent before any use of technology, artificial intelligence, audio or video recording, or observation by a third party.

1.6 Confidentiality. The member discloses information only with the person's consent or where the law requires or permits it, in particular to prevent serious harm. They do not search for or gather a person's information, including on social media, without a professional reason; they notify the person and, where applicable, the employer of any breach; they seek legal advice when in doubt; they keep referral sources confidential and respect the rights of deceased persons.

1.7 Maintenance and handling of records. The member maintains, retains, stores and secures records appropriately and in accordance with applicable policies. They record only relevant information, professionally and in a timely manner, inform the person of their right of access, protect the anonymity of third parties and apply technological security measures.

1.8 Trauma and victimization sensitivity. The member adopts a non-clinical, trauma-aware approach that avoids re-traumatization and accounts for the effects of victimization.

1.9 Termination or interruption of services. When ending or interrupting services, the member does so responsibly, informing the person, avoiding harm and referring them to other resources as needed.

Chapter 2 — Obligations in professional relationships

2.1 Professional boundaries. The member sets and maintains clear professional boundaries. They assess, manage and document any necessary or unavoidable crossing, promptly address any inappropriate crossing and take immediate action when a violation has occurred or is suspected.

2.2 Physical contact. The member avoids any physical contact likely to harm the person or be misconstrued. This rule does not apply to appropriate contact during crisis intervention or de-escalation.

2.3 Intimate, romantic or sexual relationships. The member refrains from any intimate, romantic or sexual relationship with a person served, current or former. They do not provide services to a person with whom such a relationship exists or existed.

2.4 Harassment. The member refrains from any form of harassment, including sexual harassment, toward persons served, colleagues, students and trainees.

2.5 Exploitation and gifts. The member avoids any business or financial relationship with a person served and never exploits the relationship for personal or professional gain. They accept only gifts of nominal value that are appropriate and consistent with policies and the person's interest.

2.6 Conflicts of interest. The member prevents and promptly declares any actual, potential or apparent conflict of interest, and refrains from acting where their judgment could be compromised.

2.7 Dual or multiple relationships. The member avoids dual or multiple relationships as far as possible. Where unavoidable, they protect the person and set clear, appropriate and culturally sensitive boundaries.

Chapter 3 — Obligations to colleagues and other professions

3.1 Respect. The member treats colleagues and other professionals with respect, courtesy and good faith, and avoids disparaging remarks or conduct.

3.2 Collaboration and consultation. The member collaborates in interdisciplinary work and consults other professionals when the person's interest requires it.

3.3 Managing disagreements. The member addresses professional disagreements constructively and with respect for those involved.

3.4 Supervision and consultation. A member who supervises provides fair, respectful and objective supervision and fair performance evaluation. They comply with educational-institution requirements and report any competency concern.

3.5 Obligations to students and trainees. The member fosters safe and respectful learning, sets clear expectations and assigns students and trainees only tasks suited to their training and supervision.

3.6 Complementarity and referral. The member works in complement, never as a substitute. They recognize the limits of their scope and refer the person to the competent regulated profession when the situation requires it.

Chapter 4 — Obligations in the workplace

4.1 Professional practice and position of power. The member recognizes that they hold a position of power and ensures that persons are protected from any abuse of it, during and after services. They practise diligently and in accordance with the profession's standards.

4.2 Fitness and self-care. The member practises self-care and obtains professional services when needed, so that personal difficulties do not impair the services they provide.

4.3 Knowledge of the framework. The member is knowledgeable about the laws, policies, programs and issues relating to the populations they serve.

4.4 Obligations of managers. A member in a management role fosters a respectful and ethical workplace and supports their teams in applying this code.

Chapter 5 — Obligations in independent practice

5.1 Policies and competencies. A member in independent practice holds the required competencies, assumes responsibility for service delivery and for managing their practice, and sets clear policies and procedures, including emergency planning.

5.2 Insurance. A member in independent practice maintains professional liability insurance, including for electronic and online services.

5.3 Fees. The member sets fair fees, communicates them in advance and avoids any arrangement detrimental to the person or the professional relationship.

5.4 Promotion of services. The member uses accurate and current advertising, obtains consent before any testimonial and does not solicit endorsements from persons served.

Chapter 6 — Obligations in research and analysis

6.1 Methods. The member conducts research and analysis using rigorous, recognized methods and complies with applicable research-ethics rules.

6.2 Risk reduction. The member protects research participants from harm and keeps risks to a minimum.

6.3 Consent, anonymity and confidentiality. The member obtains participants' informed consent and protects their anonymity and the confidentiality of their information.

6.4 Integrity and no manipulation. The member engages in no manipulation, fabrication or falsification of data and discloses funding sources and conflicts of interest.

6.5 Accuracy of findings. The member reports findings accurately and with nuance, without overstating or concealing their significance.

Chapter 7 — Obligations to the public and society

7.1 Protection of the public and the title. The member contributes to the protection of the public and reports misuse of the title or the practice of criminology by an unqualified person.

7.2 Expertise, opinion and testimony. The member provides objective opinions, expertise and testimony, based on evidence and limited to their competence, and clearly distinguishes facts from opinions.

7.3 Prevention and public education. The member contributes to crime prevention, community safety and public education.

7.4 Justice and fairness. The member acts so as to support a fair justice system and to reduce inequities.

Chapter 8 — Obligations to the profession and the Association

8.1 Reputation of the profession. The member contributes to maintaining and enhancing the reputation of the profession and does nothing likely to bring it into disrepute.

8.2 Reporting breaches. The member reports, through appropriate channels and in good faith, any unethical practice or serious breach of which they become aware.

8.3 Support of regulatory process. The member cooperates with the procedures of the complaints and discipline committees and provides the information required in an investigation concerning them or another member.

Service in both official languages

Wherever possible, the member facilitates access to their services in French or English according to the person's choice, and receives Association communications in the language of their choice, in keeping with the province's bilingual character.

Ethical decision-making

Faced with a difficult situation, the member follows a structured process:

1. Identify the ethical issue and the persons affected.
2. Identify the applicable values, obligations and laws.
3. Consider the options and their consequences.
4. Consult as needed (colleagues, supervision, legal counsel).
5. Decide, act and document the process.
6. Review the decision and learn from it.

Breaches and measures

Any breach of this code may lead to measures under the Complaints-Handling Policy, ranging from a warning to removal.

Glossary

- **Person**: any person or group served or affected by the criminologist's practice (victims, people who have offended, organizations, courts, communities).
- **Self-determination**: the person's right to take part in decisions concerning them and to make their own choices, within the limits set by law and the safety of others.
- **Informed consent**: free agreement given after sufficient information on the nature, purposes, limits and risks of the intervention.
- **Confidentiality**: the duty to protect information obtained and to disclose it only with consent or where required by law.
- **Competence**: the knowledge, skills and judgment required to practise rigorously within one's field.
- **Conflict of interest**: a situation where a personal interest may influence professional judgment.
- **Dual or multiple relationship**: a relationship in addition to the professional one that may harm the person or create a conflict of interest.
- **Professional boundaries**: the framework that distinguishes the professional relationship from a personal one and protects the person.
- **Scope of practice**: the activities a criminologist may perform according to their competence and field.
- **Reserved act**: an activity that a law reserves to a regulated profession.
- **Cultural safety**: practice that respects cultures, languages and perspectives, including those of Indigenous peoples, fostering a safe environment.
- **Truth and reconciliation**: the process of acknowledging historical wrongs toward Indigenous peoples and building respectful relationships.
- **Evidence**: reliable findings from research and recognized methods.
- **Discrimination**: a distinction, exclusion or preference based on a prohibited ground that harms a person.
- **Breach**: a violation of an obligation set out in this code.

Commitment: by joining the NBPAC, each member undertakes to respect this code and to promote its principles.